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REFUGEES, DISPLACED PERSONS, AND ASYLUM SEEKERS

The plight of refugees and displaced persons received much international attention throughout 1999. The mass exodus of hundreds of thousands of ethnic Albanian refugees fleeing the atrocities in Kosovo; the continuing displacement of hundreds of thousands of Sierra Leoneans as violent conflict gripped the country; the prolonged uprooting of 1.5 million Colombians; the panicked flight of nearly three-quarters of the population of East Timor in the violence following the pro-independence vote in September; the forced displacement of more than 155,000 Chechen civilians escaping the renewed bombardment of Chechnya by Russian troops in October, were vivid demonstrations of how violence, conflict, and human rights abuses can uproot innocent people leaving them displaced and dispossessed.

The ability of the global media and communications networks to instantaneously broadcast news of these and other crises to people across the world undoubtedly led to a greater awareness of the plight of refugees and the displaced. The Kosovo crisis, in particular, proved that the international community could still respond with solidarity and generosity to the plight of those uprooted by conflict and violence.

But, as Human Rights Watch found, a growing public consciousness of the problems faced by refugees from Kosovo did not result in better conditions for those in other countries who were forced to flee their homes and seek refuge elsewhere. Governments continued to violate the rights of refugees, asylum seekers, and displaced persons; countries continued to close their doors to them; displaced persons continued to suffer physical abuse and discrimination; and xenophobia and anti-refugee sentiments persisted in many countries around the world.

The challenge for the coming millennium was to harness the international concern generated by the Kosovo crisis, and translate it into political action to ensure the rights of those refugees and displaced persons who did not command the same strategic value as the Kosovar refugees and whose plight was not the focus of the international media spotlight.

Through our monitoring of the treatment of refugees and displaced persons over the past year, several important patterns and trends were identified in the international response to the problem of forced displacement.

Kosovo in Perspective

The crisis in Kosovo brought unprecedented international attention to the plight of refugees. Between March and July 1999, the world's eyes were focused on those forced to flee the atrocities in Kosovo. Not only was this one of the largest and most rapid refugee exoduses witnessed in Europe since the second World War, but it was also one of the fastest refugee returns ever witnessed. In a few weeks some 750,000 refugees were forced to flee into neighboring Albania, Macedonia, Montenegro, and Bosnia and Herzegovina; within ten weeks of the withdrawal of Serb forces from Kosovo, the majority of refugees and displaced persons had returned to their homes.

The international response to the crisis was also unprecedented. As well as the large amounts of international aid and assistance that flowed into the refugee camps in neighboring countries, governments also agreed to take quotas of refugees from the region. Reminiscent of the

Comprehensive Plan of Action (CPA) instituted in 1979 to respond to the Indo-Chinese refugee crisis in Southeast Asia, the international community established a comprehensive burden-sharing mechanism to respond to the crisis.

The level of public concern for the Kosovar refugees and the willingness of western governments to share the burden with neighboring countries were a positive demonstration of how generously the international community can respond to a refugee crisis. At the same time, several worrying precedents and trends emerged from the Kosovo crisis.

Unwilling Hosts

The actions of the Macedonian government, which ultimately forced other countries to evacuate refugees out of Macedonia, set a very disturbing example for refugee hosting countries elsewhere in the world. Fearful that a mass influx of Kosovar Albanians would tip the fragile ethnic balance within Macedonia and permanently destabilize and impoverish the country, the government was very reluctant to admit the refugees.

Repeatedly, the Macedonian authorities violated the universally binding norm of non-refoulement by closing its borders, pushing refugees back into Kosovo, and obstructing and delaying access into Macedonia through unnecessarily bureaucratic border procedures. Once the refugees were in Macedonia, the government forcibly relocated them to third countries, separated families, and denied refugees access to humanitarian assistance.

At the same time, the international community failed to hold Macedonia accountable to its international obligations. Overriding political and strategic concerns to maintain stability within Macedonia, to protect its territorial integrity, and to prevent the conflict in Kosovo from spilling over, led the international community to turn a blind eye to Macedonia's treatment of the refugees.

Events in Macedonia reached a crisis point in early April, as the influx of refugees out of Kosovo steadily increased. By April 6, some 65,000 refugees were trapped, some of them for days, in terrible conditions in the "no-man's land" at the border with Kosovo, unable to enter the country. The Macedonian government declared that it was unable to cope with the influx and called for international help. The government's terms were clear: it would only allow refugees access into its territory if the international community would play its part and evacuate refugees out.

On April 6, the Macedonian authorities suddenly decided to clear the refugees stranded in the "no-man's land." In the middle of the night, police and soldiers forcibly rounded up the refugees and pushed them onto buses. Many refugees reported being badly beaten by the police as they were forced onto the buses. While the majority of people were taken to camps in Macedonia, thousands were taken, mostly against their will, to third countries including Turkey and Albania. In the chaos that ensued, many refugees were separated from their families, and many children were separated from their parents.

Evacuation of Refugees

In order to prevent a repeat of these events, and to persuade the Macedonian government to keep its borders open and allow refugees into the camps, the international community rapidly established a humanitarian evacuation program. The program was an emergency response to a pending humanitarian disaster in Macedonia. It was also a political response designed to maintain stability in Macedonia and in the region—an overriding concern for western governments.

Unfortunately, the Macedonian government also used the humanitarian evacuation program as a means to hold the refugees to ransom until the international community met its demands to evacuate refugees. In effect the Macedonian government made access to asylum conditional upon international burden sharing, thus violating international refugee and human rights standards and endangering the lives of those refugees who were refused access and left stranded at the border.

The Threat to Asylum

Human Rights Watch recognizes and supports the need for the international community to share responsibility for refugee crises and to help host countries to cope with overwhelming and potentially destabilizing refugee influxes. The need for "burden sharing" does not, however, justify a government's failure to observe fundamental obligations under international refugee law. Governments throughout the world, regardless of their internal political, economic, or strategic circumstances, have an obligation not to return refugees to a country where they could face persecution or serious human rights violations.

Such actions send a worrying message to refugee hosting countries elsewhere. Most refugee crises occur in economically and politically unstable areas of the world, where host countries face similar problems to Macedonia and are equally ill-equipped to cope with the strains of a mass influx of refugees. If these countries refused to grant refugees access to their territory until the international community intervened, the consequences could be disastrous. Moreover, it is highly questionable whether under different political circumstances and in other parts of the world, the international community would be willing to intervene in the same way as it did during the Kosovo crisis.

The Role of the Military

There is no doubt that North Atlantic Treaty Organization (NATO) troops and national military contingents played an invaluable role during the early days of the refugee crisis in providing urgently needed logistical support and in helping to establish the first refugee camps, particularly in Macedonia. Nevertheless, the continuing involvement of the military in the humanitarian operation led to concerns about the "mixing" of humanitarian, political, and military mandates. Some commentators argued that NATO's continuing and high profile involvement in the humanitarian assistance operation was part of a public image exercise. Moreover, the involvement of a party to the ongoing conflict in the Federal Republic of Yugoslavia in the humanitarian response could undermine the independence of humanitarian action and the impartial and non-political nature of refugee work, compromise the strictly civilian and humanitarian character of refugee camps and settlements, and jeopardize the security of refugee populations.

Bilateralism

The role of the Office of the United Nations High Commissioner for Refugees (UNHCR) as "lead agency" during the Kosovo crisis was seriously compromised by donor governments' tendency to bypass the agency in funding arrangements, and to provide funding either directly to neighboring countries, or through national nongovernmental organizations (NGOs). At the same time some donor governments vocally criticized UNHCR for its weakness in coordinating the humanitarian response to the crisis. While UNHCR was ill-prepared for the crisis and its initial response was slow and uncoordinated, this situation was not helped by the abundance of bilateral funding arrangements and the plethora of NGOs and other actors involved in the humanitarian response. Coupled with the heavy engagement of the military in the humanitarian operation, a chaotic situation ensued in which it was very difficult for UNHCR to assert its leadership role and coordinating functions.

The move towards humanitarian bilateralism witnessed during the Kosovo crisis set a worrying trend for other major emergencies and posed a significant challenge to coordinated multilateral action.

Disparity in Response

The Kosovo emergency also demonstrated an extreme disparity in the international response to humanitarian crises. While international aid and assistance poured into Macedonia and Albania, and western countries opened their doors, refugees in Africa, Asia, and the Middle East continued to be neglected and forgotten. The reality of this disparity was most acute for those countries that had struggled to host thousands of refugees for decades with limited international attention or support.

Guinea, for example, was host to the largest refugee population in Africa in 1999: nearly half a million people. Of these, 300,000 refugees came from Sierra Leone, many of them having fled from horrific atrocities over the past two years. Sadly, the refugees in Guinea, and elsewhere in Africa, did not benefit from the same level of international assistance enjoyed by the Kosovar refugees. In February 1999, UNHCR requested U.S. \$4 million to move Sierra Leonean refugees in Guinea away from the

border with Sierra Leone where they were vulnerable to cross-border attacks and incursions. By July, UNHCR had not received any contributions toward this appeal. At the same time, UNHCR had a weekly budget of U.S.\$10 million for the Kosovar refugees.

Not only were significant disparities evident in the level of international assistance provided to the Kosovar refugees in comparison to refugees elsewhere, but also in the level of political will exerted by the international community to find a solution to their plight. Indeed, NATO asserted that one of the primary objectives of its operation was the rapid return of the refugees.

Meanwhile, millions of refugees in other regions of the world had spent years in refugee camps with little hope of any solution. The 3.5 million Palestinian refugees dispersed throughout the Middle East remained one of the world's largest and oldest refugee populations, some of whom were living in exile for over fifty years. For the past twenty years Pakistan and Iran hosted the world's second largest refugee population-2.6 million Afghan refugees. 100,000 Bhutanese refugees, one sixth of the entire population of that country, were in exile in Nepal for nearly a decade. Millions of refugees in the Balkans, the Caucasus, South Asia, and the Horn of Africa were unable to return to their country because the conditions that caused their flight persisted. Whole generations of children and young people knew no other life but that of a refugee camp. The international community did little in 1999 to find durable and just solutions to the plight of these refugees.

Gaps in Protection for Internally Displaced Persons

Events in the South Balkans, Southeast Asia, South America, and the Northern Caucasus during 1999 demonstrated the serious gaps in protection for internally displaced persons and the lack of an effective international protection regime for those who were forcibly displaced within their own countries. In Kosovo, East Timor, Colombia, and Chechnya hundreds of thousands of civilians were internally displaced by violent conflicts and gross human rights abuses. Throughout 1998 and 1999, some 600,000 to 700,000 Kosovar Albanians were displaced from their homes by Serb forces and authorities. An estimated 308,000 Colombians were forced to flee their homes in 1998-an increase of 20 percent over the previous year-bringing the total number of internally displaced persons in Colombia to 1.5 million. Forced displacement intensified in some regions of Colombia in 1999, and in June, for the first time, 3,500 Colombians crossed the border and sought refuge in Venezuela. In the weeks following the September 4 announcement of the pro-independence vote in East Timor, virtually the entire pre-referendum population of East Timor was forcibly displaced, with hundreds of thousands expelled to West Timor. Meanwhile, more than 155,000 civilians were forced to flee the renewed Russian bombardments in Chechnya in October 1999, most of them into neighboring Ingushetia, some to Dagestan and other parts of Russia.

Lack of Humanitarian Access

In all these regions the violent and politically complex nature of the conflicts, the total absence of security, the strength of state sovereignty interests, and the lack of an internationally recognized and enforceable protection regime for the internally displaced severely hindered access by international humanitarian agencies and made it difficult to provide urgently needed protection and assistance to internally displaced populations.

Forced Displacement, Relocations, and Restrictions on Freedom of Movement

Moreover, in Kosovo, Chechnya, and East Timor, the ruling authorities forcibly displaced and "relocated" displaced persons, in some cases with the express intention of permanently altering the political and demographic profile of the area. In Kosovo, the objective of the Serb authorities was to ethnically "cleanse" Kosovo of its Albanian population. Not only were Kosovar Albanians expelled to neighboring countries, but many were stripped of their identity documents, and their property, land, and belongings destroyed in order to obstruct their return to Kosovo.

In East Timor, the Indonesian authorities and militia groups participated in the deliberate forced displacement of over 200,000 people from East Timor into West Timor. As in Kosovo, some of those displaced were stripped of their identity documents, and their homes and property were destroyed. Human Rights Watch urged the Indonesian government, UNHCR, and other international agencies to

ensure that refugees were not moved against their will, that they were able to make free and informed decisions about where they would go, and above all that their right to return to East Timor was upheld.

In Chechnya, the Russian government announced in early October that it would set up a commission to assist displaced persons in districts of Chechnya under the control of Russian federal troops. This would involve moving displaced persons from the areas of Chechnya to which they had fled to conflict zones under the control of Russian troops, where their security could not be guaranteed. The Russian authorities also forbade displaced persons from leaving Ingushetia for other cities in Russia, where many had relatives who could care for them, unless they had residence permits for these cities. In mid-October, the Russian government closed one of its borders with Chechnya to ethnic Chechen civilians fleeing the bombing, while police posts at the administrative border between Chechnya and the republic of North Ossetia turned back ethnic Chechens fleeing the fighting, but allowed ethnic Russians to cross the border. All of these actions were in violation of Russian's obligations to protect displaced persons and to guarantee freedom of movement for its citizens, as stipulated under international and Russian law.

The Distinction between Refugees and Internally Displaced Persons

All of these crises provided vivid demonstrations of the somewhat artificial and arbitrary distinction between refugees and internally displaced persons. In Kosovo, Colombia, and East Timor, for example, refugees and internally displaced persons fled similar atrocities and situations of violent conflict. In the case of Kosovo, however, those who fled across the border to neighboring countries found higher levels of international protection and assistance than those displaced within their country, for whom humanitarian access and protection was severely limited, and nonexistent throughout the duration of the NATO bombing campaign. Colombians who fled into Venezuela, on the other hand, did not receive full refugee protection. Instead, the Venezuelan government referred to them as "displaced in transit" rather than refugees. Some refugees reported feeling intimidated into returning to Colombia despite well-founded fears of persecution from the paramilitaries.

There was virtually no protection for internally displaced persons in East Timor during the early days of the crisis. Militas, at times aided by government troops, deliberately targeted places of refuge, burnt buildings, and attacked and killed displaced persons. Humanitarian access to the displaced was severely restricted, particularly after the closure of all United Nations Mission to East Timor (UNAMET) field offices and the evacuation of U.N. staff. With the arrival of the International Force in East Timor (InterFET) in late September, however, access for humanitarian agencies to the displaced populations improved.

The more serious problem lay with providing assistance and protection to those displaced in West Timor and other parts of Indonesia. Despite some question as to whether the East Timorese there should be considered "displaced," because Indonesia maintained that they had only crossed a provincial border, or "refugees," because Indonesia's annexation of East Timor was never recognized by the United Nations, UNHCR declared them to be in a refugee-like situation, of concern to the organization, and therefore deserving of international protection and assistance.

Nevertheless, despite having a legal mandate to assist refugees in West Timor, the challenge for UNHCR and other humanitarian agencies was to negotiate with the Indonesian government for free, safe, and unimpeded access to the displaced with full security guarantees. Access to the refugees was severely restricted. In some cases, refugees in government-run camps were held in hostage-like conditions and camps were infiltrated by the same militia groups responsible for terrorizing the refugees in East Timor. The militias subjected refugees to physical attacks, intimidation, killings, and "disappearances," and both the militia and soldiers reportedly conducted "sweeps" of the camps to identify pro-independence supporters, some of whom were then taken away, detained, and physically assaulted. Meanwhile, the police and Indonesian authorities did little to control the militia or to provide refugees with adequate protection. At the time of writing, UNHCR was in the process of negotiating full and safe access to the refugees, and seeking assurances from the Indonesian government that it would guarantee the security of refugees and humanitarian workers, and ensure the civilian nature of the refugee camps and settlements.

Government Accountability

In all three of the above cases, the concerned governments violated their obligations under international human rights and humanitarian law to protect the rights, freedoms, and security of their citizens and to allow full, safe, and unimpeded access to displaced persons by international humanitarian agencies. Moreover, the actions of the Indonesian, Russian, and Yugoslav authorities were in violation of the fundamental principles outlined in the U.N. Guiding Principles on Internal Displacement. These include: principles of nondiscrimination; protection against forced displacement; rights of liberty of movement and freedom to choose one's place of residence; the right of free, safe, and unimpeded humanitarian access to displaced persons; protection against forcible return or resettlement to places where safety cannot be guaranteed; and the right to return voluntarily, in safety and with dignity, to homes or places of habitual residence. The failure of the above governments to abide by any of these principles accentuates the need for the Guiding Principles to be given a higher legal status and for governments to be held accountable for their treatment of internally displaced populations.

Groups with Special

Protection Needs

Throughout 1999 Human Rights Watch continued to focus on those refugees with special protection needs, with particular emphasis on the protection of refugee women and children. Despite the existence of comprehensive UNHCR guidelines on the protection of these groups, it was evident that in many countries these policies were not effectively implemented, UNHCR staff were not fully apprised of their content, and serious protection gaps remained.

Violence against Refugee Women

The subordinate status of women in many refugee communities-combined with problems of physical insecurity, lack of adequate food and housing, the breakdown of familial and social structures, and the loss of meaningful occupation for refugee men that accompanied many refugee situations-contributed to high rates of sexual and domestic violence against women and girls in refugee camps and settings. It was found that in countries ranging from Tanzania, Kenya, Guinea, and Pakistan, UNHCR staff and government authorities failed to actively prevent and appropriately respond to the high incidence of sexual and domestic violence in refugee camps, or to ensure that perpetrators were brought to justice. Impunity for these crimes and lack of legal recourse for women victims contributed to the persistence of sexual and domestic violence in refugee settlements.

Of particular concern was the prevalence of domestic violence in refugee settings - a problem that continued to be viewed by UNHCR and government staff as a "private issue" that did not warrant official intervention. Human Rights Watch advocated for greater recognition by UNHCR and governments of domestic violence as a serious protection problem in refugee situations. We urged UNHCR to adopt guidelines on the prevention of and response to domestic violence against women and girls and to incorporate them into existing guidelines on the protection of refugee women. We also called for more effective implementation of UNHCR policies on the protection of refugee women and on the prevention of and response to sexual violence. In addition, Human Rights Watch advocated for a greater recognition by states of gender-based persecution as a legitimate grounds for granting refugee status.

Protection for Refugee Children

Refugee children suffered disproportionately during these crises, often with little official attention to their particular vulnerability. Children made up 52 percent of the world's refugee population and 65 percent of the population of the 300,000 Sierra Leonean refugees in Guinea, where Human Rights Watch investigated the protection of refugee children in 1999. Large numbers of Sierra Leonean refugee children were separated from their families either in Sierra Leone or during flight, and lived with care givers in the refugee camps. Not only had these children experienced and witnessed horrific abuse in Sierra Leone, including sexual and physical abuse, mutilation, killing, forced recruitment, and forced labor, but they were also vulnerable to physical and sexual abuse and exploitation, hazardous labor, denial of education, and other ill-treatment in the refugee camps in Guinea.

Human Rights Watch found that refugee children in Guinea did not enjoy full protection from UNHCR staff, and that their needs were frequently ignored or forgotten. Many of the problems faced by children were related to a chronic lack of assistance and the unsafe location of the refugee camps close to the border with Sierra Leone, which left the refugees vulnerable to cross-border attacks, killings, abductions, "disappearances," and forced recruitment. A shortage of funds and severe logistical problems in the delivery of assistance meant that many camps in the Gueckedou region of Guinea were without food distribution for three months, from the end of 1998 to early 1999. At the same time, failures to register "vulnerable" groups in the February 1999 census operation meant that large numbers of separated children, and other refugees who were entitled to special assistance were excluded from receiving assistance.

Lack of assistance was the root cause of many of the human rights abuses identified in the camps. Refugee girls felt they had no choice but to engage in prostitution in order to meet their daily needs, and children risked their lives crossing the border in search of food. Kamajor militia-Sierra Leonean government civil defense forces who fought in conjunction with the Economic Community of West African States Monitoring Group (ECOMOG)-were also present in the refugee camps and were known to use refugee children as soldiers.

UNHCR faced significant political, financial, and logistical challenges in providing assistance and protection to refugees in Guinea. Not least was the international community's shameful neglect of the Sierra Leonean refugee crisis and the chronic lack of funding seriously hampered the refugee program. Nevertheless, Human Rights Watch expressed concern that the problems identified in Guinea were symptomatic of a more general failure to provide effective protection to refugee children worldwide. UNHCR staff must be held accountable for the implementation of the guidelines on the protection of refugee children; separated and vulnerable children must be identified and provided with adequate protection; girls must be protected from sexual abuse and exploitation; the civilian nature of refugee camps must be preserved to protect refugee children from recruitment into armed forces; and the international community must provide sufficient funds to protect refugee children wherever they are.

Security and Asylum

In a continuing trend, governments across the world associated refugee movements with threats to national and regional security, as witnessed most recently in Macedonia. Consequently, refugee policies and responses to refugee influxes were designed to restrict and contain refugee populations and to minimize potential security threats, often with little respect for the rights of the refugees themselves.

The Great Lakes and East Africa

Nowhere was this more apparent than in the Great Lakes region of Africa, where continuing instability and conflict in Rwanda, Burundi, and the Democratic Republic of Congo (DRC) caused a persistent flow of refugees into neighboring countries, and at times created serious security problems. Tanzania, in particular, was a generous host to hundreds of thousands of refugees from the Great Lakes region since the start of the Rwanda crisis in 1994. In October 1999, the Tanzanian government stated that it was host to some 800,000 refugees. Of these, 473,700 Burundian refugees, 58,200 refugees from the DRC, and 4,700 refugees from Rwanda were assisted by UNHCR, while the others lived self-sufficiently.

There is no doubt that years of hosting such large numbers of refugees placed a considerable strain on Tanzania's scarce economic and environmental resources. Moreover, the general tendency for conflicts in the Great Lakes region to spill over national borders and the active presence of armed elements amongst the refugee populations posed serious threats to security in Tanzania. Of particular concern to the Tanzanian government was the border area between Burundi and Tanzania, where the majority of Burundian refugees were located. A series of cross-border incursions and military activity along the border between the two countries since 1997 led Tanzania to impose restrictive measures on the refugee population. In late 1997, the Tanzanian government forcibly rounded up tens of thousands of refugees living in the border area and relocated them to camps. Many of the refugees had lived in Tanzania since the 1970s, owned property, were self-sufficient and fully integrated into Tanzanian society. Nevertheless, these refugees, along with others who had arrived in Tanzania more recently,

were forcibly uprooted with little or no notice. Families were separated and were forced to leave behind their property and belongings.

While measures were required to secure the border region, the indiscriminate roundup and confinement of all refugees, including those who had lived in Tanzania for over thirty years, on the grounds that they all posed a national security risk, was not a legitimate response to the problem. Human Rights Watch argued that strengthening security could not be achieved through indiscriminate crackdowns on refugees and a curtailment of their fundamental rights. We called on the international community to provide Tanzania with urgently needed resources to strengthen security in the border area, to improve law enforcement capacities through the recruitment and training of additional police, and to undertake judicial capacity building and reform.

Concern at the diminishing respect for refugees' rights in Tanzania was heightened by the introduction of the December 1998 Refugee Act, which superceded the 1965 Refugee Control Act. Of particular concern was the lack of transparency which characterized the government's introduction of the Act. NGOs, including Human Rights Watch, were not given an opportunity to openly review or comment on the Bill as it passed through Parliament. Even UNHCR had only a minimal role during the drafting stages and was not involved in deliberations about the content of the bill, although such technical advisory functions fell within its mandate. Under Article 35(2)(c) of the 1951 Refugee Convention, Tanzania is obliged to provide UNHCR with information concerning "laws, regulations and decrees" relating to refugees. A number of provisions included in the Act could be detrimental to refugee protection, including granting greater powers to camp commanders, the lack of adequate due process protections in the appeals process for status determination interviews, and the greater powers devolved to local authorities.

Sadly, such trends were observed elsewhere in this region. Increasingly, governments sought to address security concerns through restrictions on refugees, migrants, and asylum seekers, resulting in a curtailment of their rights and freedoms. In the wake of the bombing of the U.S. Embassy in Nairobi in August 1998, for example, all foreigners, and especially migrants, refugees, and asylum seekers, were viewed as potential security threats by the Kenyan government.

Holding refugees responsible for the rising crime rate and insecurity in Kenya, the government declared that all refugees in Nairobi should be rounded up and sent to remote, rural camps in the north of the country. The conditions in these camps were harsh and their remote location condemned the refugees to virtual confinement. Moreover, security in the camps was poor and the safety of many refugees, especially political activists, could not be guaranteed.

Conclusion

The year 2000 marked the fiftieth anniversary of UNHCR-the international agency established to provide protection and assistance to refugees worldwide. Fifty years later, despite some improvements in refugee protection, governments' attitudes toward refugees and asylum seekers were dictated by domestic political interests and range from active hostility to indifference and neglect. Western governments, in particular, seemed willing to assist refugees and seek solutions to their plight only when it was politically and strategically expedient to do so. Although UNHCR made some advances in its response to the protection of certain groups, such as women, children, the elderly, and internally displaced persons, serious gaps remained, and policies designed to further their protection were not always universally or comprehensively applied.

As the Kosovo crisis so vividly demonstrated, asylum is the last resort when human rights have been violated and all other remedies have been exhausted. The right to asylum is a lifesaving mechanism that cannot be compromised. Human Rights Watch seeks to ensure that, regardless of governments' domestic economic, or strategic interests-or the nationality, race, or strategic importance of refugees-the right to asylum and refugee protection remains intact into the twenty-first century.

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